

SENATE BILL NO. 390

INTRODUCED BY W. CURDY, J. ISALY, M. BERTOGLIO, B. GILLESPIE, G. HUNTER, W. MCKAMEY, T.
RUNNING WOLF, D. LOGE, J. WINDY BOY, T. MCGILLVRAY, P. TUSS

A BILL FOR AN ACT ENTITLED: "AN ACT REVISING THE DEFINITION OF "SMOKING" IN THE CLEAN
INDOOR AIR ACT; PROVIDING A DEFINITION OF "ELECTRONIC SMOKING DEVICE"; AMENDING
SECTION 50-40-103, MCA; AND PROVIDING AN IMMEDIATE EFFECTIVE DATE."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

Section 1. Section 50-40-103, MCA, is amended to read:

"50-40-103. Definitions. As used in this part, the following definitions apply:

(1) "Bar" means an establishment with a license issued pursuant to Title 16, chapter 4, that is
devoted to serving alcoholic beverages for consumption by guests or patrons on the premises and in which the
serving of food is only incidental to the service of alcoholic beverages or gambling operations. The term
includes but is not limited to taverns, night clubs, cocktail lounges, and casinos.

(2) "Department" means the department of public health and human services provided for in 2-15-
2201.

(3) "Electronic smoking device" means a product containing or delivering nicotine or another
substance intended for human consumption that can be used by a person in any manner for the purpose of
inhaling vapor or aerosol from the product. The term includes a device manufactured, distributed, marketed, or
sold as an e-cigarette, e-cigar, e-pipe, e-hookah, dab rig, or vape pen, or under any other product name or
descriptor.

(3)(4) "Enclosed public place" means an indoor area, room, or vehicle that the general public is
allowed to enter or that serves as a place of work, including but not limited to the following:

(a) restaurants;

(b) stores;

(c) public and private office buildings and offices, including all office buildings and offices of

political subdivisions, as provided for in 50-40-201, and state government;

(d) trains, buses, and other forms of public transportation;

(e) health care facilities;

(f) auditoriums, arenas, and assembly facilities;

(g) meeting rooms open to the public;

(h) bars;

(i) community college facilities;

(j) facilities of the Montana university system; and

(k) public schools, as provided for in 20-1-220 and 50-40-104.

~~(4)~~(5) "Establishment" means an enterprise under one roof that serves the public and for which a single person, agency, corporation, or legal entity is responsible.

~~(5)~~(6) "Incidental to the service of alcoholic beverages or gambling operations" means that at least 60% of the business's annual gross income comes from the sale of alcoholic beverages or gambling receipts, or both.

~~(6)~~(7) "Person" means an individual, partnership, corporation, association, political subdivision, or other entity.

~~(7)~~(8) "Place of work" means an enclosed room where one or more individuals work.

~~(8)~~(9) (a) "Smoking" or "to smoke" ~~includes~~ means the act of:

(i) lighting, smoking, or carrying a lighted cigar, cigarette, pipe, or any smokable product, and includes including the use of marijuana; or

(ii) inhaling, exhaling, burning, or carrying a lighted or heated cigar, cigarette, pipe, hookah, or any other lighted or heated tobacco or plant product, whether natural or synthetic, intended for inhalation, including marijuana or cannabis, in any manner or any form.

(b) The term includes the use of an electronic smoking device that creates an aerosol or vapor, in any manner or in any form, or the use of any oral smoking device for the purpose of circumventing the prohibition of smoking in Title 50, chapter 40, part 1."

NEW SECTION. Section 2. Effective date. [This act] is effective on passage and approval.

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